

**DEPARTMENT SEVEN
JUDGE TIM P. KAM
707-207-7307
TENTATIVE RULINGS SCHEDULED FOR
FRIDAY, SEPTEMBER 11, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30 p.m.

**WELLS FARGO BANK, N.A. vs. MICHAEL J. COLLETT
Case No. CL25-08206**

Defendant's Motion to Dismiss; Defendant's Motion for Leave to File Cross-Complaint;
Defendant's Motion to Compel Fiduciary Duty

TENTATIVE RULING

Defendant MICHAEL J. COLLETT makes three motions in this breach of contract action brought by Plaintiff WELLS FARGO BANK, N.A. Plaintiff alleges breach of an express contract and breach of a contract implied in fact, both based on its extension of a credit card to Defendant, his use of the card, and his alleged failure to make payments on the account. Defendant moves to dismiss Plaintiff's complaint; Defendant moves for leave to file a cross-complaint; and Defendant moves to compel Plaintiff's performance of a fiduciary duty.

Motion to Dismiss. The court construes Defendant's "motion to dismiss" as a motion for judgment on the pleadings, as the thrust of the motion is that Plaintiff has not sufficiently stated a cause of action in its complaint. (See *Pierson v. Sharp Memorial Hospital* (1989) 216 Cal.App.3d 340, 342-343 [taking "motion to strike" targeting sufficiency of allegations as motion for judgment on the pleadings].)

The elements of a cause of action for breach of contract are (1) the existence of a valid contract, (2) the plaintiff's performance or excuse for nonperformance, (3) breach, and (4) damages. (*Stockton Mortgage, Inc. v. Tope* (2014) 233 Cal.App.4th 437, 447.)

Plaintiff states all elements of its causes of action for breach of contract. Plaintiff states the existence of a valid written contract with regard to its first claim in the form of the credit card agreement between the parties, attached to the complaint as Exhibit A, and the existence of a contract implied in fact between the parties with regard to its second claim in the form of its allegation that Plaintiff issued Defendant a credit card he then used to purchase goods and services with an agreement to repay sums advanced. Plaintiff alleges its performance under either contract in that it advanced sums to Defendant on the credit card. Plaintiff alleges Defendant's breach of either contract in that he stopped making payments on the credit card account. Plaintiff alleges its damages are \$10,085.64.

Defendant's motion to dismiss, construed as a motion for judgment on the pleadings, is denied.

Motion for Leave to File Cross-Complaint. Code of Civil Procedure section 428.10, subdivision (a) permits a party against whom a cause of action has been asserted in a complaint to file a cross-complaint against the initially complaining parties. Code of Civil Procedure section 428.50 allows a cross-complaint against an initially-complaining party to be filed after the cross-complaining party has answered the initial complaint only if the cross-complaining party obtains leave of court. Defendant needs leave of court to file a cross-complaint against Plaintiff because Defendant has answered Plaintiff's complaint.

Where a proposed cross-complaint against an initial party is "compulsory," meaning that it is asserted against the initial party and arises out of the same series of transactions or occurrences as the initial party's complaint and therefore must be filed lest the would-be cross-complainant lose his right to assert his claims, leave to file the cross-complaint "shall" be granted "upon such terms as may be just to the parties" if the would-be cross-complainant has "acted in good faith." (Code Civ. Proc., §§ 426.10, 426.30, 426.50.) A "permissive" cross-complaint, on the other hand, is one against a new party or one where the proposed claims do not relate to the same series of events as the initial party's complaint, and is given leave for filing only in the court's discretion. (Code Civ. Proc., § 428.50, subd. (c) ["interests of justice" standard]; *Orient Handel v. United States Fid. & Guar. Co.* (1987) 192 Cal.App.3d 684, 701.)

Defendant did not attach a copy of his proposed cross-complaint to his motion. His motion does not specify what claims he intends to present against Plaintiff. The court is unable to tell if the proposed cross-complaint is compulsory or permissive and thus cannot tell if leave is subject to the court's discretion.

Defendant's motion for leave to file a cross-complaint is denied without prejudice. Defendant may refile his motion with a copy of the proposed cross-complaint.

Motion to Compel Fiduciary Duty. Defendant's motion to compel specific performance of fiduciary duty is denied. Defendant has not cited any relevant authority supporting his request.

SILVERIO ROSALES vs. MAIN ELECTRIC SUPPLY COMPANY LLC; ET AL.
Case No. CU23-02346

Plaintiff's Motions to Compel EXPRESS's Further Responses to Special Interrogatories and Requests for Production

TENTATIVE RULING

Plaintiff SILVERIO ROSALES moves to compel Defendant EXPRESS SERVICES, INC. ("EXPRESS") to further respond to three requests for production from his requests for production, set one and two special interrogatories from his special interrogatories, set one.

THE PARTIES ARE TO APPEAR TO ADDRESS THE LIMITED ISSUES OF: (1) THE APPROPRIATE SAMPLE SIZE FOR RFP'S 10, 11, and 12, AND (2) DEADLINES FOR PRODUCTION.

Meet and Confer Efforts. The court finds Plaintiff made adequate efforts to meet and confer prior to filing this motion as this discovery dispute has been ongoing for many months. The parties have clearly established their positions and reached an impasse in informal discussions.

Timeliness of Motion. Plaintiff's motion is not untimely. Code of Civil Procedure section 1008, subdivision (b) permits a party whose motion was denied to renew that motion on a showing of "new or different facts, circumstances, or law." Plaintiff moved on September 10, 2024 to compel EXPRESS to further respond to his special interrogatories and requests for production. Those motions included the special interrogatories (#7-8) and requests for production (#10-12) now at issue, supporting that the instant motion is a renewal of the previous. Plaintiff filed an affidavit accompanying the instant motion stating that he filed this renewed motion soon after the court clarified the meaning of its June 2025 ruling on his original motion and Plaintiff realized that specific responses had not been ordered. (Declaration of Helen M. You filed 5/27/2026 at ¶¶ 17-18.) This is a sufficient showing of different "facts" or "circumstances" to support accepting the instant motion as a renewed motion not subject to the filing deadline for an initial motion to compel further responses.

Analysis. Plaintiff's request for production #10 seeks all timesheets and timekeeping records for putative class members. Request #11 seeks all documents reflecting wages earned by putative class members. #12 seeks all documents specifically showing final payments made to putative class members upon separation from employment. To each EXPRESS states objections and then pledges to produce Plaintiff's records, with openness to meeting and conferring on an appropriate size of a sample of records for the proposed class. This meeting and conferring has been going on for some time and the court has offered input.

On June 5, 2025 the court issued an order on Plaintiff's previous motion to compel further responses to special interrogatories and requests for production wherein the court stated that Plaintiff was entitled under *Williams v. Superior Court* (2017) 3 Cal.5th 531 (*Williams*) to seek discovery pertaining to Defendants' employees in general, regardless of whether they will ultimately be part of his represented class, because the scope of discovery is broad and a putative class action wage and hour plaintiff does not have to present any more proof of his claims than any other litigant would in order to conduct discovery. The other employees are potential witnesses to shared employment policies of potential relevance to Plaintiff's case here, under *Williams*.

Williams supports discovery of the time sheet and payroll records Plaintiff seeks. Where the other employees are potential witnesses to shared employment policies records supporting or disproving their testimony about their employment are also discoverable. *Williams* addressed argument from the opposing party that it would be unduly burdensome to produce information related to persons who might not ultimately be appropriately included in the proposed class, stating parties propounding interrogatories generally have no obligation to prove up the merits first. (*Williams*, *supra*, 3 Cal.5th at p. 550.) The Legislature consciously created California's broad discovery scheme with awareness that defendants might encounter so-called "fishing expeditions." (*Id.* at p. 551.) Accordingly, EXPRESS's argument that records of employees other than those who worked for co-Defendant MAIN ELECTRIC SUPPLY COMPANY LLC are not discoverable is unavailing.

AS TO THE APPROPRIATE SAMPLE SIZE REGARDING RFP'S 10, 11, AND 12, THE PARTIES ARE TO APPEAR FOR ORAL ARGUMENT.

Plaintiff's Special Interrogatory #7 asks the identity of EXPRESS's person most knowledgeable on EXPRESS's meal and rest period policies. Special Interrogatory #8 asks the identity of EXPRESS's person most knowledgeable on EXPRESS's wage, payroll, and expense reimbursement policies. These interrogatories are reasonably calculated to lead to the discovery of admissible evidence because the persons sought can be expected to have relevant knowledge of the policies and procedures related to the wage and hour violations Plaintiff alleges. EXPRESS's argument that Plaintiff is not entitled to an unlimited sample of records is not applicable to these interrogatories.

Conclusion. Plaintiff's motion is granted in part.

1. The Court finds that Plaintiff's motion is timely.
2. Defendant must respond to RFP'S 10, 11, and 12. The appropriate sample size and deadline for production will be determined after oral arguments at the September 11, 2026 hearing.
3. Defendant must respond to SPECIAL INTERROGATORIES 7 and 8. The deadline for production will be determined after oral arguments at the September 11, 2026 hearing.

4. The Parties are to appear to address the issues identified above.

FIRST NATIONAL BANK vs. JULIET ATKINS

Case No. CU25-03100

Plaintiff's Motion for Judgment on the Pleadings

TENTATIVE RULING

THE PARTIES ARE TO APPEAR. At the hearing, the Court's tentative ruling is as follows:

Plaintiff's motion for judgment on the pleadings is granted without leave to amend.

Defendant's answer does not deny any material allegation of the complaint. Instead, Defendant implicitly admitted the existence and amount of the debt. (Answer, § 3(b).) Every material allegation not controverted by the answer is to be taken as true for purposes of the action. (Code Civ. Proc. § 431.20(a); *Hennefer v. Butcher* (1986) 182 Cal.App.3d 492, 504.) And, a creditor owes no duty to exercise reasonable forbearance in enforcing its remedies. (*Price v. Wells Fargo Bank* (1989) 213 Cal.App.3d 465, 479 [a creditor owes no duty of reasonable forbearance in enforcing its remedies].) In other words, any breakdown in settlement negotiations due to any unreasonableness by Plaintiff would not be a valid defense to the breach of contract cause of action where a creditor has no duty to exercise reasonable forbearance in enforcing its legal remedies against a debtor. (*Id.*)

The Court has also reviewed Defendant's amended answer filed on May 14, 2026 and notes that the amended answer still does not deny any material allegations of the complaint or present any affirmative defenses. Regarding leave to amend, the Court finds that Defendant has not identified any ability to deny any material allegations or allege any new matter that constitutes a valid affirmative defense to the cause of action. As such, there is no basis for leave to amend.

Judgment shall be entered for Plaintiff and against Defendant for the principal balance of \$144,600.47. Costs may be claimed and contested in accordance with the rules adopted by the Judicial Council. (Code Civ. Proc. § 1034(a).)

Department 7 is inviting you to a scheduled ZoomGov meeting.
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